6

Arrest

Arrest has not been defined in the Code of Criminal Procedure or in any other law. However, Arrest denotes restraint or deprivation of one's personal liberty. Courts defined arrest as taking a person into custody. Arrest deprives an individual of his fundamental right to life and personal liberty which is guaranteed under Art. 21 of the Constitution. However, Art 21 of the Constitution acknowledges that the procedure established by law can take away life & personal liberty of an individual. Power of police to arrest an individual flows from this as contained in various sections of Cr.P.C and other laws. Art 22 of Constitution specifically provides for safeguards against arbitrary arrest and detention. Various reports of Law Commission have also made recommendations relating to power and procedure of arrest. Hon'ble Supreme Court issued various directions in numerous cases, notable among them being D.K.Basu Vs State of West Bengal, Joginder Kumar Vs State of UP, Arnesh Kumar Vs State of UP. These recommendations and directions have also been incorporated in Cr.P.C through amendments from time to time. Hence, a police officer making an arrest should do so in strict compliance with legal provisions and procedures.

A police officer has power to arrest a person concerned in cognizable offence without any warrant / order from magistrate (Sec.41 Cr.P.C).

- When a person commits the cognizable offence in the presence of police officer, he can be arrested – (Sec.41(1)(a) Cr.P.C).
- But, if the arrest of a person is based on complaint / information / suspicion, police officer can arrest if he has reason to believe that such person has committed a cognizable offence and if such cognizable offence is punishable with death or imprisonment for more than 7 years - (Sec.41(1)(ba) Cr.P.C).
- Whereas, if such cognizable offences are punishable with imprisonment for seven years or less a police officer can arrest only under the following circumstances:- (Sec.41(1)(b) Cr.P.C).
  - A reasonable complaint must have been made, or credible information must have been received or a reasonable suspicion must exist that the person has committed a congnizable offence.
  - The police officer must have reason to believe on the basis of such complaint or information or suspicion that the person has committed the offence.
  - The police officer must be satisfied that such arrest of a person is necessary for any of the following reasons:-
    a) To prevent him from committing any further offence;
    b) For proper investigation of the offence;
    c) To prevent him from causing the evidence to disappear or tampering with such evidence;
    d) To prevent him from making any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing the fact to the court or to the police;
    e) His presence in the court whenever required cannot be ensured unless he is arrested.

Thus, police officer shall adhere to following guidelines while making arrest in a congnizable offence, punishable with imprisonment for seven years or less:-

- There must be a reasonable complaint or credible information or grounds for reasonable suspicion to indicate that the person has committed the offence. The complaint/ information/suspicion must be credible or

reasonable. This would mean application of mind to assess the credibility or reasonableness. The police officer must have reason to believe on the basis of the complaint or information or suspicion that the person has committed the offence. It would be advisable to record that the arrest is based on reasonable complaint or credible information or reasonable suspicion.

- Reasons for making arrest under categories 41(b)(ii) 'a' to 'e' must exist and this reason should be recorded in the case dairy.
- Investigating Officer should also submit such reasons for arrest in writing before the jurisdictional magistrate in the prescribed form along with remand report.
- It may be noted that arrest is not completely prohibited in these cases and the reason for making arrest should be duly recorded.
- If a person is not arrested in a case involving punishment of imprisonment for seven years or less, the reason for not making arrest must be recorded.
- Further, in a case where arrest is not required u/s. 41(1) Cr.P.C., the police officer shall issue a notice u/s. 41A Cr.P.C., directing the accused to appear before him at such a place as may be specified in the notice. IO shall adhere to procedure prescribed vide DGP Circular in Rc.No.000252/ Crime 4(2)/2019, dt.30.01.2019 while issuing 41A notice.

Power of police to arrest without warrant can be exercised under following other circumstances.

- If a person is proclaimed as an offender - (Sec.41(1)(c) Cr.P.C)
- If a person is found in possession of stolen property - (Sec.41(1)(d) Cr.P.C)
- If a person obstructs a police officer in execution of duty or escapes from lawful custody - (Sec.41(1)(e) Cr.P.C)
- If a person is Deserter from Armed Forces – (Sec.41(1)(f) Cr.P.C)
- Released convict breaching rule u/s.356(5) (Absence from residence non notification of residence etc.,) – (Sec.41(1)(h) Cr.P.C)
- On a written or oral requisition from another police officer – (Sec.41(1)(i) Cr.P.C)
- For the purpose of dispersing unlawful assembly, the officer-in-charge of the PS, if necessary can effect arrest and confine the persons (without a warrant) in order to disperse such assembly – (Sec.129(2) Cr.P.C).
- A Police Officer, knowing of a design to commit any cognizable offence, may arrest, without orders from a Magistrate and without a warrant, the person so designing, if it appears to such officer that the commission of the offence cannot be otherwise prevented – (Sec.151 (1) Cr.P.C).
- If the Government cancels the suspension or remission, and there upon the person in whose favour the sentence has been suspended or remitted may, be arrested by any Police Officer, without a warrant and remanded to undergo un expired portion of the sentence (Sec.432(3) Cr.P.C).

A Police Officer cannot arrest a person without a warrant in non- cognizable cases normally. However, power of police to arrest in non cognizable cases can be exercised under following circumstances.

- Where a person having committed a non-cognizable offence in the presence of a Police Officer, refuses to give his name and address or gives a false name and address or the Police Officer believes that the given name and address is false. (Sec.42 Cr.PC).

How to make arrest is described u/s 46 (1) CrPC. In making arrest, a Police Officer shall actually touch or confine the body of the person to be arrested unless there be a submission to the custody. If such person resists during arrest, the Police Officer or other person who is authorized to arrest may use all means necessary to effect the arrest (46(2) CrPC). The words "may use all means" in Section 46 (2), denote using of reasonable force. Popularly known as 'minimum force' which may differ from case to case. Whether the force used to arrest is minimal or in excess is subject to the scrutiny of the Judicial/Executive Magistrate.

Section 46 (2) shall be read along with 46(3) CrPC which states 'Nothing in this section gives a right to cause the death of a person who is not

accused of an offence punishable with death or with imprisonment for life'. However even if the person has not committed an offence for which punishment is either death or life imprisonment, the Police Officer may go to the extent of causing the death of the person while effecting arrest when he apprehends imminent danger to his life and property. (Sections 100 and 103 IPC - Right of private defense of body and property which is applicable even to a private person).

Section 48 CrPC empowers an officer to pursue into any place in India for the purpose of arrest (without warrant) any person involved in cognizable offence. According to Sec.22 of the Police Act 1861, Police Officer's power to arrest is ordinarily limited to a Police District. But under section 48, 60 and 76 of Cr.PC the power of arrest of Police Officer extends all over India.

A police officer effecting arrest must adhere to the following guidelines scrupulously.

- The police officer while making an arrest, must bear accurate, visible & clear identification of his name – (Sec.41B(i) Cr.P.C).
- A memorandum of arrest must be prepared. It must be got attested by at least one witness who is a member of the family or a respectable member of the locality. It must be got counter signed by accused – (Sec.41B(ii) Cr.P.C).
- If arrest memo is not attested by a member of the family, the arrested person must be informed that he has a right to have a relative/friend of his choice to be informed of the arrest – (Sec.41B(iii) Cr.P.C)
- During interrogation, accused must be permitted to meet an advocate of his choice, though not throughout the interrogation – (Sec.41D Cr.P.C).
- In case of woman accused, submission to custody on oral intimation of arrest is to be presumed. A woman should not be touched for making arrest unless:- (Sec.46(1) Cr.P.C)
    a) Circumstances otherwise require, or
    b) The police officer is female.
- No woman should be arrested after sunset or before sunrise. In exceptional circumstances, a woman police officer may obtain prior permission from the Magistrate by submitting a written report – (Sec.46(4) Cr.P.C).
- Arrested person should not be subjected to any more restraint than is necessary to prevent his escape – (Sec.49 Cr.P.C).
- Arrested person should be forthwith told the full particulars of the offence or grounds for arrest – (Sec.50(1) Cr.P.C).
- In arrest in a bailable case, the police officer shall inform the accused that he is entitled to be released on bail – (Sec.50(2) Cr.P.C).
- Information about arrest and the place where the accused is held in custody must be given to any friend or relative or such other person as nominated by him – (Sec.50A(1) Cr.P.C)
- The accused must be informed, as soon as he is brought to police station, of his right to have a friend/relative/nominee informed – (Sec.50A(2) Cr.P.C)
- An entry must be made in the GD about who was informed of the arrest – (Sec.50A(3) Cr.P.C)
- The arrested person shall be examined by a government medical officer or by a registered medical practitioner. In case of women, such examination must be done by a female doctor – (Sec.54(1) Cr.P.C).
- A copy of the report of such medical examination shall be given by the doctor to the arrested person or someone nominated by him – (Sec.54(3) Cr.P.C).
- When a subordinate is deputed to make the arrest, an order in writing must be given – (Sec.55 Cr.P.C).
- The person having custody of an arrested person should take reasonable care of the health and safety of the accused – (Sec.55A Cr.P.C).
- Arrested person must be produced before the magistrate with in 24 hours of arrest – (Sec.57 Cr.P.C).

- If a person is arrested in a non-cognisable case for not giving name and address or for giving false details.
  a) When true name and address ascertained, release on bond with or without sureties; - (Sec.42(2) Cr.P.C).
  b) If true name/address cannot be ascertained within 24 hours or if he fails to execute bond, send him to Magistrate – (Sec.42(3) Cr.P.C).

A prisoner should not be handcuffed as a matter of routine whether while in police station or on escort or during production in Court. The only circumstances where a prisoner could be handcuffed are stipulated by the Hon'ble Supreme Court in "*Citizen for Democracy through its President vs. State of Assam and Other reported in AIR 1996 SC 2193: 1995 (3) SCC 743*" as below:

- Where a prisoner is arrested by the police without warrant, the police officer concerned, if he is satisfied that it is necessary to handcuff such prisoner, may do so till the time he is taken to the police station and thereafter, his production before the Magistrate. This personal satisfaction should be on a well grounded basis for drawing a strong inference that the prisoner is likely to break out of the custody. It must be done only in rare cases of concrete proof regarding proneness of the prisoner to violence, his tendency to escape, his dangerous/desperate nature, with no other practical way of forbidding escape being available.
- Further use of fetters thereafter can only be under the orders of the magistrate. Where the police or the jail authorities have well-grounded basis for drawing a strong inference that a particular prisoner is likely to jump jail or break out of the custody, then the said prisoner should be produced before the Magistrate concerned and a prayer for permission to handcuff the prisoner be made before the said Magistrate. Save in rare cases of concrete proof regarding proneness of the prisoner to violence, his tendency to escape, he being so dangerous/desperate and the finding that no other practical way of forbidding escape is available, the Magistrate may grant permission to handcuff the prisoner.
- In all the cases, where a person arrested by police is produced before the Magistrate and remand is given by the Magistrate, the person concerned shall not be handcuffed unless special orders in that respect are obtained from the Magistrate at the time of grant of the remand.
- When the police arrests a person in execution of a warrant of arrest obtained from a Magistrate, the person arrested shall not be handcuffed unless the police has obtained orders from the Magistrate for handcuffing of the person to be so arrested.
- The basic principle is that handcuffs or other fetters shall not be forced on convict prisoner or under-trial prisoner while lodging in a jail or while being transported from one jail to another or from jail to court and back, except on the orders from the Court.
- Any violation of the directions shall be summarily punishable under Contempt of Court Act, apart from other penal consequences under the law.